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#	Case Name	Tentative
5.	2023-1311590 CEP America - California vs. Citrus Valley Physicians Group, A Medical Corporation	The Court grants Defendant Citrus Valley Physicians Group's Motion for leave to file its First Amended Answer to CEP America – California dba Vituity's Complaint. The Motion Complies with California Rules of Court, rule 3.1324. A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court ("CRC"), Rule 3.1324(a).) Moreover, a separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (CRC, Rule 3.1324(b).) Here, these procedural requirements are met. (See ROA 59).

	“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.” (Code Civ. Proc. § 473(a)(1).) As with other pleadings, the court may grant leave to amend an answer. (<i>Hong Sang Market, Inc. v. Peng</i> (2018) 20 Cal.App.5th 474, 488). “[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].) Plaintiff opposes this Motion. It focuses on challenging when Defendant discovered the meet for more affirmative defenses. But even assuming arguendo that there was an unreasonable delay in seeking leave to amend, Plaintiff has not shown cognizable prejudice. Plaintiff argues that Defendant’s failure to amend its Answer or raise these matters prior to the mediation was prejudicial to Vituity given that any undisclosed affirmative defenses were part of Defendant’s evaluation of the case but not of Vituity’s; thus, the likelihood of success at the mediation was diminished. Plaintiff cites no law to show that a matter not being properly evaluated for settlement is cognizable prejudice. Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, etc. (<i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 486-488; see <i>P & D Consultants, Inc. v. City of Carlsbad</i> (2010) 190 Ca.App.4th 1332, 1345.) Here, trial is not until October and Plaintiff has not met its burden in showing any cognizable prejudice. Thus, the Motion is granted. Defendant is ordered to file its proposed First Amended Answer within 10 days.
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		Defendant shall serve notice of this Order.
6.	2024-1383091 Chambers vs. Johnson	Defendant Dehghanmanesh seeks an order allowing Stephen B. Beranek, Esq. and Michael Gardineer, Esq. to appear as counsel <i>pro hac vice</i> for him in this action. Both Counsel have complied with CRC Rule 9.40. Accordingly, Counsels' unopposed application is granted. Defendant Dehghanmanesh shall give notice.
7.	2023-1330417 Burch vs. San Juan Capistrano Unified School District	Demurrer to Third Amended Petition The demurrer by Respondent Capistrano Unified School District, erroneously sued as San Juan Capistrano Unified School District ("District") to the Third Amended Verified Petition for Writ of Mandate ("TAP") filed by petitioners Daniel Burch ("Burch") and Quantum Education Dynamics ("Quantum") (collectively, "Petitioners") is overruled in part and sustained in part with 15 days leave to amend. District's requests for the Court to take judicial notice of the directives issued by CalSTRS in 2018, 2019, and 2022 are granted. (Evid. Code § 452, subd. (b); TAP, ¶¶ 12-13.) District's request for the Court to take judicial notice of the directive issued by CalSTRS in 2023 is denied. This directive is directed at fiscal year 2022-23 and 2023-24, after the time period at issue in the TAP and do not appear relevant to the allegations in the TAP. (<i>Bell v. Greg Agee Construction, Inc.</i> (2004) 125 Cal.App.4th 453, 459, fn. 2.) District's unopposed request for the Court to take judicial notice of District's Board policy number 3300(b) should be granted. (Evid. Code, § 452, subd. (b); <i>Warmington Old Town Associates, L.P. v. Tustin Unified School Dist.</i> (2002) 101 Cal.App.4th 840, 858, fn. 3.) <u>First cause of action for petition for writ of mandate</u> Failure to exhaust administrative remedies "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer." (Code Civ. Proc., § 430.41, subd. (b).)